

SENATE No. 1233

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to setting proportionate penalties for the distribution of heroin, fentanyl, and carfentanil.

PETITION OF:

NAME:

Patrick M. O'Connor

DISTRICT/ADDRESS:

First Plymouth and Norfolk

SENATE No. 1233

By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 1233) of Patrick M. O'Connor for legislation to set proportionate penalties for the distribution of heroin, fentanyl, and carfentanil. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1087 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to setting proportionate penalties for the distribution of heroin, fentanyl, and carfentanil.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 32E of chapter 94C, as amended by chapter 69 of the Acts of 2018,
2 is hereby amended by striking subsection (c) and replacing it with the following:-

3 (c) Any person who trafficks in heroin or any salt thereof, morphine or any salt thereof,
4 opium or any derivative thereof by knowingly or intentionally manufacturing, distributing or
5 dispensing or possessing with intent to manufacture, distribute, or dispense or by bringing into
6 the commonwealth a net weight of 18 grams or more of heroin or any salt thereof, morphine or
7 any salt thereof, opium or any derivative thereof or a net weight of 18 grams or more of any
8 mixture containing heroin or any salt thereof, morphine or any salt thereof, opium or any

derivative thereof shall, if the net weight of heroin or any salt thereof, morphine or any salt thereof, opium or any derivative thereof or any mixture thereof is:--

(1) Eighteen grams or more but less than 36 grams, be punished by a term of imprisonment in the state prison for not less than 5 nor more than 35 years. No sentence imposed under this clause shall be for less than a mandatory minimum term of imprisonment of 5 years, and a fine of not less than \$5,000 nor more than \$50,000 may be imposed but not in lieu of the mandatory minimum term of imprisonment, as established herein.

(2) Thirty-six grams or more but less than 100 grams, be punished by a term of imprisonment in the state prison for not less than 10 nor more than 40 years. No sentence imposed under this clause shall be for less than a mandatory minimum term of imprisonment of 10 years, and a fine of not less than \$5,000 nor more than \$50,000 may be imposed, but not in lieu of the mandatory minimum term of imprisonment, as established herein.

(3) One hundred grams or more but less than two hundred grams, be punished by a term of imprisonment in the state prison for not less than 25 years and up to any term of years. No sentence imposed under the provisions of this clause shall be for less than the mandatory minimum term of imprisonment of 25 years, and a fine of not less than ten thousand nor more than one hundred thousand dollars may be imposed but not in lieu of the mandatory minimum term of imprisonment, as established therein.

(4) Two hundred grams or more, be punished by a term of imprisonment in the state prison for life. No sentence imposed under the provisions of this clause shall be for less than a mandatory minimum term of imprisonment of a life sentence nor more than five hundred

thousand dollars may be imposed but not in lieu of the mandatory minimum term of imprisonment, as established therein.

SECTION 2. Said section 32E of chapter 94C, as amended by chapter 69 of the Acts of 2018, is hereby amended by striking subsection (c1/2) and replacing it with the following:-

(c½) Any person who trafficks in fentanyl or any derivative of fentanyl by knowingly or intentionally manufacturing, distributing, dispensing or possessing with intent to manufacture, distribute or dispense or by bringing into the commonwealth shall, if the net weight of the fentanyl in pure form is:-

(1) 4 grams or more but less than 9 grams, be punished by a term of imprisonment in the state prison for not less than 5 nor more than 35 years. No sentence imposed under this clause shall be for less than a mandatory minimum term of imprisonment of 5 years, and a fine of not less than \$5,000 nor more than \$50,000 may be imposed but not in lieu of the mandatory minimum term of imprisonment, as established herein.

(2) 9 grams or more but less than 20 grams, be punished by a term of imprisonment in the state prison for not less than 10 nor more than 40 years. No sentence imposed under this clause shall be for less than a mandatory minimum term of imprisonment of 10 years, and a fine of not less than \$5,000 nor more than \$50,000 may be imposed, but not in lieu of the mandatory minimum term of imprisonment, as established herein.

(3) 20 grams or more but less than 40 grams, be punished by a term of imprisonment in the state prison for not less than 25 years and up to any term of years. No sentence imposed under the provisions of this clause shall be for less than the mandatory minimum term of imprisonment of 25 years, and a fine of not less than ten thousand nor more than one hundred

thousand dollars may be imposed but not in lieu of the mandatory minimum term of imprisonment, as established therein.

(4) 40 grams or more, be punished by a term of imprisonment in the state prison for life. No sentence imposed under the provisions of this clause shall be for less than a mandatory minimum term of imprisonment of a life sentence nor more than five hundred thousand dollars may be imposed but not in lieu of the mandatory minimum term of imprisonment, as established therein.

SECTION 3. Said section 32E of chapter 94C, as amended by chapter 69 of the Acts of 2018, is hereby amended by striking subsection (c3/4) and replacing it with the following:-

(c^{3/4}) Any person who trafficks in carfentanil by knowingly or intentionally manufacturing, distributing, dispensing or possessing with intent to manufacture, distribute or dispense shall, if the net weight of the carfentanil in pure form is:-

(1) one-third of a gram or more but less than 2 grams, be punished by a term of imprisonment in the state prison for not less than 5 nor more than 35 years. No sentence imposed under this clause shall be for less than a mandatory minimum term of imprisonment of 5 years, and a fine of not less than \$5,000 nor more than \$50,000 may be imposed but not in lieu of the mandatory minimum term of imprisonment, as established herein.

(2) 2 grams or more but less than 4 grams, be punished by a term of imprisonment in the state prison for not less than 10 nor more than 40 years. No sentence imposed under this clause shall be for less than a mandatory minimum term of imprisonment of 10 years, and a fine of not less than \$5,000 nor more than \$50,000 may be imposed, but not in lieu of the mandatory minimum term of imprisonment, as established herein.

74 (3) 4 grams or more but less than 8 grams, be punished by a term of imprisonment in the
75 state prison for not less than 25 years and up to any term of years. No sentence imposed under
76 the provisions of this clause shall be for less than the mandatory minimum term of imprisonment
77 of 25 years, and a fine of not less than ten thousand nor more than one hundred thousand dollars
78 may be imposed but not in lieu of the mandatory minimum term of imprisonment, as established
79 therein.

80 (4) 8 grams or more, be punished by a term of imprisonment in the state prison for life.
81 No sentence imposed under the provisions of this clause shall be for less than a mandatory
82 minimum term of imprisonment of a life sentence nor more than five hundred thousand dollars
83 may be imposed but not in lieu of the mandatory minimum term of imprisonment, as established
84 therein.

85 SECTION 4. This act shall go into effect immediately upon its passage.